

25NWLC50829 25NWLC50829

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25NWLC50829: KINECTA FEDERAL CREDIT UNION vs JAIRO TORRES

Tentative Ruling # 1– Motion to Deem RFAs Admitted

The Court has read and considered Plaintiff Kinecta Federal Credit Union's ("Plaintiff") Motion to Have Requests for Admission Deemed Admitted and Matters Deemed Genuine As Against Defendant and Request for Monetary Sanctions ("RFA Motion"), including the declaration of counsel and attached exhibits. No opposition has been filed by Defendant Jairo Torres ("Defendant").

A. Service and Procedural Background

The Court finds Plaintiff served Requests for Admission ("RFAs") on Defendant on December 31, 2025, by mail and email. The Court notes Plaintiff did not submit a proof of service for the RFAs. However, Plaintiff submitted counsel's declaration under penalty of perjury stating the RFAs were served on December 31, 2025.

Counsel's declaration further states Defendant provided non-verified responses to RFAs Nos. 1–4, but Plaintiff did not include a copy of those non-verified responses with the moving papers. Counsel also declares that numerous calls were made to Defendant regarding the outstanding discovery, but no further communication was received. To date, Plaintiff has not received verified responses to the RFAs.

Plaintiff served the RFA Motion by March 30, 2026, and filed a proof of service by mail. The address reflected on the proof of service matches the address Defendant provided in his Answer.

B. Ruling on Motion to Deem RFAs Admitted / Matters Genuine

Having considered the moving papers, Plaintiff's Motion to Have Requests for Admission Deemed Admitted and Matters Deemed Genuine As Against Defendant is GRANTED.

C. Monetary Sanctions

Plaintiff seeks sanctions in the amount of \$1,669.50, consisting of attorney's fees for preparation of the Motion, any response to the opposition, and attendance at the hearing. Counsel declares an hourly rate of \$315.

The Court finds the requested fees unreasonable and disproportionate for a collections matter. The Court further notes that Defendant's Answer filed October 30, 2025 admits the allegations of the Complaint and requests to "make [monthly] payment arrangements," and that the RFAs (served along with other discovery) were likely unnecessary in light of those admissions. Despite those admissions, Plaintiff served discovery requests and filed motions to compel.

Nonetheless, the Court AWARDS sanctions in favor of Plaintiff and against Defendant Jairo Torres in the reduced amount of \$250, comprised of: (1) one hour for preparation at a discounted rate of \$250; and (2) \$0 for counsel's appearance at the hearing. Sanctions shall be paid within 30 days of the Court's order.

The Court will revise and sign the Proposed Order to reflect the Court's ruling.

Plaintiff to give notice.

Tentative Ruling #2 – Motions to Compel Response to RFPs and Form Interrogatories and Requests for Monetary Sanctions

Plaintiff Kinecta Federal Credit Union ("Plaintiff") filed two additional motions to compel discovery responses: (1) Motion to Compel Defendant to Provide Answers and Responsive Documents to Request for Production, Set One; and (2) Motion to Compel Defendant to Provide Answers to Form Interrogatories, Set One. Both motions seek monetary sanctions. No oppositions have been filed by Defendant Jairo Torres ("Defendant").

For the reasons stated below, both motions are DENIED.

A. Requests for Production, Set One

On December 31, 2025—the same date Plaintiff served its Requests for Admission—Plaintiff served Requests for Production ("RFPs"), Set One, on Defendant. Plaintiff's RFPs seek documents that appear to be in Plaintiff's possession, including documents relating to the two loans between Plaintiff and Defendant (RFP Nos. 1, 3) and documents regarding payments made on those loans (RFP Nos. 2, 4). Plaintiff also seeks documents supporting Defendant's contention that he does not owe the balances on the loans (RFP No. 5).

The Court notes Plaintiff did not submit a proof of service for the RFPs. Plaintiff did, however, submit counsel's declaration under penalty of perjury stating the RFPs were served on December 31, 2025.

B. Form Interrogatories, Set One

On December 31, 2025, Plaintiff also served Form Interrogatories, Set One, requesting responses to Form Interrogatories Nos. 15.1, 17.1, and 50.1 through 50.6.

C. No Responses; Lack of Substantial Justification

Defendant did not respond to the RFAs, RFPs, or Form Interrogatories.

However, the Court also notes it appears Plaintiff has not meaningfully accounted for Defendant's Answer filed October 30, 2025, which admits the allegations of the Complaint and requests to "make [monthly] payment arrangements." In light of

those admissions, and given that Plaintiff's RFPs largely seek documents already within Plaintiff's possession and control, the Court finds these motions to compel were not substantially justified.

D. Misuse of Discovery; Burden on the Court

It is a misuse of the discovery process to make, "unsuccessfully, and without substantial justification, a motion to compel ... discovery." (Code Civ. Proc., § 2023.010(h).) The Court further finds that propounding discovery and filing motions to compel under these circumstances—where the responding party's Answer contains admissions that are determinative of the core issues and where the moving party seeks production of documents already in its possession—served no legitimate discovery purpose.

Discovery motion practice is intended to resolve genuine disputes necessary to prepare a case for trial, not to generate motion work where the requested information is already available to the moving party or where the issues have effectively been conceded. Unnecessary motions to compel consume scarce judicial resources, divert court staff time, and delay the Court's ability to address matters requiring adjudication. The Court will not countenance discovery tactics that function primarily to impose needless burden on the Court or to leverage the expense of motion practice—particularly where the record suggests the motions were pursued to obtain monetary sanctions rather than to obtain information material to the merits.

Accordingly:

Plaintiff's Motion to Compel Defendant to Provide Answers and Responsive Documents to Request for Production, Set One is DENIED.

Plaintiff's Motion to Compel Defendant to Provide Answers to Form Interrogatories, Set One is DENIED.

Plaintiff's requests for monetary sanctions in connection with both motions are DENIED.

Plaintiff to give notice.